SCHEDULED AND TRIBAL AREAS

Article 244 | Fifth Schedule | Sixth Schedule | PESA | FRA | Cases

01 CONCEPT AND VOCABULARY

1. Part X uses differentiated governance for land, culture, voice and self-rule.
2. Article 244(1): Fifth Schedule outside Assam, Meghalaya, Tripura, Mizoram.
3. Article 244(2): Sixth Schedule tribal areas in those four States.
4. Article 244A: Parliament may form an autonomous State within Assam.
5. Scheduled Area status, tribal-area status and Article 342 ST status differ.
6. Answer line: asymmetry serves substantive equality but remains reviewable.

02 FIFTH SCHEDULE TERRITORY

- L Only territory covered by a Presidential paragraph 6 order is scheduled.
- R The Schedule excludes the four Sixth Schedule States from its Article 244(1) field.
- L Official criteria guide: tribal preponderance, compactness, viable unit, backwardness.
- R Do not freeze district counts without a dated Presidential-order audit.
- L Criteria do not self-execute; an order creates or changes legal status.
- R Trap: an ST population does not automatically make an area Scheduled.

03 FIFTH EXECUTIVE CHAIN

1. State executive power continues in the Scheduled Area.
2. Governor reports annually or whenever the President requires.
3. Union executive power extends to directions on administration.
4. No automatic Union takeover; no local body assumes total administration.
5. Article 339 adds commission and essential-welfare-scheme direction routes.
6. Article 275(1) adds constitutional grants; finance is not proof of devolution.

04 TAC, REGULATIONS AND AMENDMENT

TAC: not more than 20; about 3/4 ST Assembly representatives; shortfall rule.

Function: advice on welfare/advancement matters referred by Governor.

Governor may exclude/modify Acts and make peace-and-good-government regulations.

Fields: tribal land transfer, land allotment and money-lending.

Consult TAC where it exists; regulation needs Presidential assent.

Paragraph 7: Parliament amends Fifth Schedule by ordinary law, not Article 368.

05 SIXTH TERRITORY AND INSTITUTIONS

1. Scope: Assam, Meghalaya, Tripura and Mizoram only.
2. Governor organises/reorganises autonomous districts and regions.
3. Different tribes within a district may receive autonomous regions.
4. Ordinary council: up to 30; up to 4 nominated; remainder elected.
5. Bodoland: up to 46 = 40 elected + 6 nominated; do not universalise.
6. A constitutional ADC is not a statutory hill council or Article 371 committee.

06 ASSAM-SPECIFIC DEPTH AND ARTICLE 244A

- L Paragraph 3A: additional powers for Karbi Anglong and Dima Hasao/NCHAC.
- R It may create a legislature, Council of Ministers or both.
- L Paragraph 3B: enlarged subject allocation for Bodoland Territorial Council.
- R Existing councils are not automatically autonomous States.
- L Twenty-second Amendment 1969 inserted Article 244A for Assam.
- R Trap: BTC != TAC != statutory council != Article 244A State.

07 COUNCIL POWERS

1. Legislative: land, non-reserved forests, water, shifting cultivation and custom.
2. Ordinary council law has no effect until Governor assent.
3. Executive: schools, dispensaries, markets, ferries, fisheries and roads.
4. Judicial: village/council courts for specified tribal-party matters.
5. Fiscal: land revenue, listed taxes and District/Regional Funds.
6. Paragraph 10 licences non-tribal traders/money-lenders under bounded rules.

08 ROYALTIES, LAW FILTERS AND CHECKS

Paragraph 9: agreed mineral royalty share; Governor decides share disputes.

Royalty != ownership, consent or clearance.

Assam 12; Meghalaya 12A; Tripura 12AA; Mizoram 12B differ.

Paragraph 14 commission examines administration and council-made law.

Paragraph 15 permits reasoned suspension for safety/public order.

Paragraph 16 supplies dissolution and temporary supersession/assumption routes.

09 PESA 1996

1. Applies only to Fifth Schedule Scheduled Areas; not Sixth Schedule councils.
2. Village may be habitation, hamlet or customary group of habitations.
3. Approve plans; identify beneficiaries; certify utilisation.
4. Consult for acquisition/R&R; prior recommendation for specified minor minerals.
5. State law endows MFP, markets, credit, intoxicants, restoration and local control.
6. Exact verb and institutional level decide the legal effect.

10 FRA AND CASE LAW

- L FRA: individual, community and CFR rights; Gram Sabha initiates claims.
- R Niyamgiri 2013: Gram Sabha findings on specified FRA/religious claims.
- L Section 5 connects rights with conservation duties.
- R MoEF retained final Stage-II decision; no universal veto.
- L Samatha 1997: AP regulation invalidated impugned non-tribal private leases.
- R Chebrolu 2020: 100% teacher reservation invalid; equality remains.

11 TRAPS AND REFORM

1. Fifth regulation -> President assent; Sixth ordinary council law -> Governor assent.
2. TAC advises; ADC legislates/administers/adjudicates/taxes within listed fields.
3. PESA participation != FRA title != constitutional territorial status.
4. Reform: public reports, TAC responses, PESA alignment and land/CFR records.
5. Council autonomy needs staff, funds, audit, assent reasons and remedies.
6. Protect women, smaller tribes, remote habitations and internal minorities.

12 ANSWER SPINE AND VERDICT

1 Define territory and legal source.

2 Map Article 244, Schedule and statute.

3 Name actor, exact power/verb and assent route.

4 Add Samatha, Niyamgiri or Chebrolu with holding and limit.

5 Analyse land, culture, agency, capacity and accountability.

6 Conclude: protection must become accountable community self-government.